

LONG-TERM SERVICE AGREEMENT

Comprehensive Operations and Maintenance Battery Energy Storage System (BESS)

Document Reference: LCY-LTSA-GAL-2026

Version: 4.7

Date: August 2026

VERSION HISTORY

v1.0 — Oct 2025: Initial draft

v2.0 — Jan 2026: Updated to Linyang RFI confirmed rates

v2.4 — Feb 2026: Updated pricing, availability LD rate

v3.0 — 22 Feb 2026: Group-level availability, EU Directive interest, tier structure

v4.0 — 17 Mar 2026: Tier D removed (not offered), section numbering fixed,

SOH table corrected, availability duration 15yr, lender assignment,

companion document reference to EPC v4.0

v4.1 — 6 Aug 2026: Mirrored EPC v6.5 round — end-to-end interface responsibility (\$5.9A), EMS-affiliate carve-out clarified (\$4.4(e)), SOH Year 10/15 extension-conditionality clarified (\$10.2), Effective Date aligned to EPC Order Date (\$1).

v4.2 — 11 Aug 2026: Added order-of-precedence cross-reference (\$2.4A, mirrors EPC §11.5); corrected stale EPC cross-reference from v6.3/§1A.5(e) to v6.5/§1A.5A; duplicated the colour-key legend to the front matter so it is visible from page one, not only at Annex LT-2.

v4.3 — 13 Aug 2026: Corrected EMS contracting entity legal name from "R&D Innovations Sp. z o.o." to "Disperon Sp. z o.o." (NIP, KRS and registered-office fields unaffected).

v4.4 — 13 Aug 2026: Lowered late-payment interest (\$7.5, §12.7(a)(i)) from ECB+8% to ECB+3%, matching the EPC's negotiated rate (EPC §5A.4(b)(i)) — this mirror was missed in the v6.5 SCC-call round; no commercial rationale exists for treating LTSA Service Fee arrears differently from EPC milestone-payment arrears.

v4.5 — 14 Aug 2026: Resolved internal contradiction between the Effective Date recital and the Companion Documents clause — LTSA is now unambiguously intended to be signed on the same date (Order Date) as the EPC, with the 30-day Documents Long-Stop Date as a disclosed fallback only, not an equal alternative.

v4.6 — 14 Aug 2026: Fully integrated Annex LT-2's ~30 technical-review clauses (plus two further unnumbered items found on review) inline into their correct numbered sections (previously these appeared only after the signature block, contradicting the front matter's claim that they were already integrated); Annex LT-2 is now a historical index only. Relocated §21.3A (Assignment for Security), which was also found misplaced after the signature block, to its correct position in Section 21. Fixed a numbering gap at former Section 6.6 by renumbering 6.7–6.10 down to 6.6–6.9 (no clause had ever been numbered 6.6; no cross-references elsewhere required updating).

v4.7 — 18 Aug 2026: Fixed drafting artifact "EPC Annex V6 §..." cross-references — corrected to "EPC §..." (no such annex exists; this was a leftover reference to an old EPC version-numbering scheme).

Agreed technical and service amendments through v4.2 are colour-coded by source (see the key below); all are integrated directly in the numbered clauses; Timotheos's July 2026 technical-review items are now integrated inline into the numbered clauses, with Annex LT-2 retaining a historical index only (see Annex LT-2). Red = included as the Client requested; purple = included with our changes; orange = included with our counter-proposal; teal = raised by Dino Constantinou; blue = raised by Anastasios (lawyer); navy = base v4 drafting.

Colour key: ■ **included as requested** ■ **included — our changes** ■ **included — our counter** ■ **from Dino** ■ **from Anastasios** ■ **base v4 drafting**

1. PARTIES

This Long-Term Service Agreement ("Agreement") is made as of [●] 2026 ("Effective Date"), being the same date as the Order Date under the EPC Agreement (Ref. LCY-EPC-GAL-B1-2026, Section 1A.4). The Parties intend to execute this Agreement together with the EPC Agreement, consistent with Section 1A.8 of the EPC Agreement.

BETWEEN:

Lighthief Cyprus Ltd,

a company incorporated under the laws of the Republic of Cyprus, with registered office at Agiou Andreou 241, AG TRIAS COURT, Flat/Office 31, 3036 Limassol, Cyprus, and operational address at 28 October Avenue 249, Lophitis Business Center 1, Office 201, 3035 Limassol, Cyprus, Company No. HE 477423, TIN 60187188Q

("Service Provider");

and

Galascope Ltd,

a company incorporated under the laws of the Republic of Cyprus, with registered office at Karaiskaki 6, City House, 3032 Limassol, Cyprus, Registration No. HE 303759

("Client").

Service Provider and Client are referred to individually as a "Party" and collectively as the "Parties."

2. BACKGROUND

2.1 The Client has procured a battery energy storage system ("BESS") pursuant to an Engineering, Procurement and Construction Agreement ("EPC Agreement") with the Service Provider.

2.2 The Parties wish to establish a long-term arrangement for the monitoring and preventive maintenance of the BESS to ensure optimal performance, reliability, and longevity.

2.3 This Agreement sets out the terms under which the Service Provider shall provide monitoring and maintenance services for the BESS.

2.4 Integrated Project-Document suite. This Agreement is part of a single integrated Project-Document suite comprising the EPC Agreement, the Technical Agreements, the OEM Direct Warranty Undertaking, the OEM Warranty Terms, the Advance Payment Guarantees, the OEM Performance Guarantee and the EMS Subscription Agreement, and shall be interpreted consistently with them so that there is no gap in responsibility for operation, maintenance, warranty preservation or performance.

2.4A Order of precedence. In the event of any inconsistency or conflict between the documents referred to in Section 2.4, the order of precedence set out in the EPC Agreement (Section 11.5) shall apply: (1) the EPC Agreement; (2) this LTSA; (3) the Advance Payment Guarantees and the OEM Performance Guarantee; (4) the OEM Direct Warranty Undertaking and the OEM Warranty Terms; (5) the EMS Subscription Addendum; (6) the Technical Agreements.

3. DEFINITIONS AND INTERPRETATION

Unless otherwise defined herein, capitalised terms shall have the meanings given to them in the EPC Agreement.

For the purposes of this Agreement:

"BESS"

means the battery energy storage system installed at the Site, as described in Schedule 1.

"Business Day"

means a day other than a Saturday, Sunday, or public holiday in the Republic of Cyprus.

"Commissioning Date"

means the date of issuance of the Provisional Acceptance Certificate (PAC) under the EPC Agreement.

"Critical Alert"

means any alert indicating a condition that requires immediate attention to prevent system failure, safety hazard, or significant performance degradation.

"EMS"

means Energy Management System, which is a third-party system unless expressly supplied by the Service Provider.

"Maintenance Visit"

means a scheduled on-site visit by the Service Provider's qualified personnel to perform preventive maintenance activities.

"Monitoring Platform"

means the remote monitoring software and infrastructure used by the Service Provider to collect, analyse, and display BESS performance data.

"Performance Data"

means data collected from the BESS including but not limited to power output, energy throughput, state of charge (SOC), state of health (SOH), temperature, voltage, current, and alarm logs.

"Preventive Maintenance"

means scheduled maintenance activities designed to prevent equipment failure and ensure optimal performance.

"Response Time"

means the time between the Service Provider receiving notification of an issue and the commencement of diagnostic or remedial action.

"Service Fee"

means the annual fee payable by the Client for the services under this Agreement, as set out in Schedule 2.

"Site"

means the location where the BESS is installed, as specified in Schedule 1.

"SOC"

means State of Charge, expressed as a percentage of remaining battery capacity.

"SOH"

means State of Health, expressed as a percentage of the battery's original rated capacity.

"Availability"

means the percentage of time during which the BESS is capable of operating at its rated capacity, calculated as set out in Schedule 4.

"Availability Guarantee"

means the minimum annual Availability level guaranteed by the Service Provider, as set out in Schedule 4.

"Corrective Maintenance"

means unscheduled maintenance activities required to restore the BESS to operational condition following a fault or failure.

"Degradation Curve"

means the expected reduction in battery capacity over time under normal operating conditions, as set out in Schedule 5.

"Guaranteed SOH"

means the minimum State of Health guaranteed by the Service Provider at any given point during the Term, as defined in Schedule 5.

"Liquidated Damages"

means the predetermined damages payable by the Service Provider in the event of failure to meet guaranteed performance levels.

"Scheduled Downtime"

means planned maintenance periods agreed in advance, which shall not exceed two (2) days (48 hours) per Park per calendar year.

"System Capacity"

means the total installed capacity of the BESS in MWh, as specified in Schedule 1.

Definitions — Restoration and Resolution. "Restoration Time" means the time from detection of a fault to restoration of safe operational capability (including safe partial operation where full operation is not immediately possible). "Resolution Time" means the time from detection to permanent repair/replacement, recommissioning and incident closure. "Repeated Service Failure" means three or more Critical breaches of the same or similar cause within a rolling twelve (12) months.

4. SERVICE SCOPE AND SERVICE TIERS

4.1 Service Tier Overview

The Service Provider offers the following service tiers, as selected by the Client in Schedule 2:

TIER A – BASIC MONITORING AND MAINTENANCE

- (a) 24/7 remote monitoring of the BESS;
- (b) Quarterly preventive maintenance visits (every three months);
- (c) Technical support and response services;
- (d) Monthly and quarterly reporting.

TIER B – COMPREHENSIVE O&M (Includes Tier A plus)

- (a) Corrective maintenance and fault rectification;
- (b) PCS and Medium Voltage Switchgear (MVS) maintenance;
- (c) Emergency response services.

TIER C – FULL SERVICE WITH AVAILABILITY GUARANTEE (Includes Tier B plus)

- (a) 97% annual Availability Guarantee;

- (b) Local service team and response capability;
- (c) Local spare parts warehouse maintenance;
- (d) Availability Liquidated Damages as set out in Schedule 4.

Note: Tier D (Premium Service with Performance Warranty including SOH Guarantee) is not currently offered. Tier C is the highest available service tier. SOH and performance guarantees are available as OEM-backed guarantees under the EPC Agreement (Section 10.6).

4.1A Selected Tier. Unless the Client expressly selects otherwise in Schedule 2, the Project shall be treated as Tier C from PAC for both Galascope 1 and Galascope 2 (corrective maintenance, local spare parts, 97% availability guarantee, priority response, warranty-preservation services and annual performance testing).

4.2 Core Services (All Tiers)

The Service Provider shall provide the following core services:

- (a) Remote monitoring of the BESS (Section 5);
- (b) Preventive maintenance (Section 6);
- (c) Technical support and response services (Section 8);
- (d) Reporting and documentation (Section 5.6).

4.3 Corrective Maintenance (Tiers B, C, D)

Where the Client has selected Tier B, C, or D:

- (a) The Service Provider shall perform Corrective Maintenance to restore the BESS to operational condition following any fault or failure;
- (b) Corrective Maintenance includes diagnosis, repair, and testing of faulty components;
- (c) The cost of replacement parts is included, subject to Section 9.

4.3A Corrective Maintenance — scope. Corrective Maintenance includes all diagnosis, labour, travel within Cyprus, removal, installation, recommissioning, configuration restoration, testing and incident documentation required to return the affected BESS, PCS, BMS, MV switchgear, SCADA gateway and related controls to service, except to the extent a cost is expressly excluded under Schedule 2.

4.4 Exclusions (All Tiers)

Unless otherwise agreed in writing, the following are excluded from this Agreement:

- (a) EMS software licences, upgrades, or customisation;
- (b) Third-party equipment not supplied under the EPC Agreement;
- (c) Damage caused by Force Majeure, Client misuse, or unauthorised modifications;
- (d) Grid-related issues beyond the point of interconnection;
- (e) Civil works, structural repairs, or site infrastructure;
- (f) Damage caused by third-party actions or vandalism;
- (g) Battery degradation beyond the Guaranteed SOH (if SOH guarantee is selected).

4.4A Exclusions — causation and burden. Exclusions apply only to the extent the excluded event directly caused the relevant loss, downtime or degradation. The Service Provider continues to provide monitoring,

diagnosis, emergency response, safe isolation, mitigation, documentation and warranty-claim support notwithstanding any exclusion.

5. REMOTE MONITORING SERVICES

5.1 Monitoring Coverage

The Service Provider shall provide remote monitoring of the BESS on a 24/7 basis, 365 days per year, via the Monitoring Platform.

5.2 Monitored Parameters

The Monitoring Platform shall collect and analyse the following Performance Data:

- (a) System power output (kW) and energy throughput (kWh);
- (b) Battery state of charge (SOC) and state of health (SOH);
- (c) Cell-level and module-level voltage and temperature;
- (d) Power Conversion System (PCS) performance and efficiency;
- (e) Ambient temperature and environmental conditions;
- (f) Alarm and fault logs;
- (g) Communication status and connectivity;
- (h) Inverter and transformer status.

5.2A Minimum monitored parameters. Monitoring shall include, at minimum, cell-level voltage and temperature, string/container SOC and SOH, current, power limits, alarm/fault codes, PCS status, transformer/MV status, HVAC/liquid-cooling status, fire-system and gas-detection status, emergency stop, auxiliary supply, communication status, EMS command execution and DSO/SCADA telemetry.

5.3 Alert Classification

Alerts shall be classified as follows:

- (a) Critical Alert: Immediate risk to safety, equipment, or system availability. Response within four (4) hours.
- (b) Major Alert: Significant degradation in performance or reliability. Response within twenty-four (24) hours.
- (c) Minor Alert: Non-urgent issues requiring attention during next scheduled maintenance. Response within seventy-two (72) hours.
- (d) Informational: Data logging and trend analysis. No immediate response required.

5.4 Alert Notification

- (a) Critical Alerts shall be notified to the Client by telephone and email within thirty (30) minutes of detection.
- (b) Major Alerts shall be notified to the Client by email within two (2) hours of detection.
- (c) Minor and Informational Alerts shall be included in the next scheduled report.

5.5 Client Portal Access

The Service Provider shall provide the Client with secure access to the Monitoring Platform, enabling the Client to view real-time and historical Performance Data. The Service Provider shall, at no additional charge, provide the Client (or up to three (3) Client representatives nominated in writing) with training on the use of the Monitoring Platform and portal, comprising one (1) session at or shortly after PAC and one

(1) refresher session per calendar year on reasonable notice, or promptly following any material change to the Monitoring Platform.

5.6 Reporting

The Service Provider shall provide the following reports:

(a) Monthly Performance Report: Summary of energy throughput, availability, SOC/SOH trends, alerts, and key performance indicators. Delivered within ten (10) Business Days of month end.

(b) Quarterly Health Report: Detailed analysis of battery health, degradation trends, thermal performance, and recommendations. Delivered within fifteen (15) Business Days of quarter end.

(c) Annual Review Report: Comprehensive annual assessment including performance benchmarking, maintenance summary, and forward recommendations. Delivered within thirty (30) days of each anniversary of the Commissioning Date.

5.6A Reporting content. Reports shall include raw-data extracts, incident log, downtime classification with excluded-hour justification, availability per Park and in aggregate, SOH trend, cell imbalance, thermal deviation, firmware/software version, open punch items, spare-parts usage, warranty notices, cyber/security events and recommendations. The Client may reasonably challenge a classification.

5.7 Data Retention

The Service Provider shall retain Performance Data, alarm/event logs, BMS/PCS/EMS logs, maintenance records, SOH certificates and availability calculations for a minimum of fifteen (15) years from the Commissioning Date, and for five (5) years following termination. The Client shall have continuous access to and the right to export all such data at any time. Data shall be retained in formats acceptable to the OEM (Linyang) for warranty claims and to any applicable regulatory authority.

5.8 Data Ownership

All Performance Data collected from the BESS shall be owned by the Client. The Service Provider shall have a licence to use such data for the purposes of providing services under this Agreement and for anonymised benchmarking and product improvement.

5.8A Client data ownership. The Client owns all operational, technical, performance, market, dispatch, SCADA, BMS, PCS, SOH and availability data generated by or relating to the BESS. The Service Provider shall not use identifiable Client data for benchmarking, training, product development or third-party purposes without the Client's prior written consent.

5.9A End-to-end interface responsibility. The Service Provider remains responsible for end-to-end BMS, PCS, SCADA and EMS interface compatibility, communications, command execution and data integrity throughout the Term. Failure of an affiliate, software provider (including DISPERON) or subcontractor to deliver these functions shall not excuse the Service Provider's responsibility to the Client, consistent with Section 4.4B of the EPC Agreement.

6. PREVENTIVE MAINTENANCE

6.1 OEM Compliance

All maintenance activities shall be performed in accordance with the OEM Maintenance Manual (Linyang Power Atlantic Battery Container Maintenance Manual) and applicable OEM guidelines. The Service Provider shall not perform any maintenance operations beyond those specified in the OEM manual without prior OEM authorisation.

6.1A Warranty preservation. The Service Provider shall perform all maintenance required to preserve the OEM warranty, DWU, SOH guarantees, corrosion warranty, fire-system warranty, PCS/MV warranty and insurance cover, and shall be liable for loss of warranty, claim rejection, downtime or degradation caused by its failure to perform or document required maintenance.

6.2 Maintenance Schedule

The Service Provider shall perform preventive maintenance in accordance with the following schedule:

- (a) Monthly Remote Checks: Container status monitoring, BMS data backup, parameter review, and software update assessment as required by OEM.
- (b) Quarterly On-Site Maintenance Visits: Comprehensive on-site inspection and maintenance by qualified personnel, conducted every three (3) months (four visits per year), as required by the OEM to maintain warranty validity.
- (c) Quarterly Remote Health Check: Remote diagnostic review of all monitored parameters, SOH assessment, and system optimisation recommendations.
- (d) Annual Grounding Test: Verification of ground connection with resistance measurement (must not exceed 4Ω per OEM specification).
- (e) Additional visits as required based on monitoring alerts, OEM recommendations, or Corrective Maintenance needs.

6.3 OEM-Mandated Maintenance Items

The following items are mandatory per OEM specification:

- (a) Monthly: Container condition check, BMS data download and backup, run data/parameter/log saving, software update review;
- (b) Every Six Months: Cable shielding inspection, surge protection device (SPD) verification, fuse inspection, copper bus bar check;
- (c) Annually: Cable layout inspection, ground resistance test ($\leq 4\Omega$), equipotential bonding verification, cable torque verification per OEM specification.

6.3A Warranty-Preservation File. The Service Provider shall maintain a warranty-preservation file per Park, including maintenance checklists, photographs, torque records, thermal images, grounding/insulation results, firmware records, alarm/SOC logs, environmental records, fire-system tests, spare-part records and OEM communications, in a format acceptable to the OEM (Linyang).

6.4 Weather Restrictions

Per OEM requirements, the Service Provider shall not open container doors for maintenance during rainy, humid, snowy, foggy, or excessively windy conditions. Maintenance visits shall be rescheduled if weather conditions are unsuitable.

6.5 Quarterly Maintenance Visit Scope

Each Maintenance Visit shall include, at a minimum:

- (a) Visual inspection of all BESS components, enclosures, and connections;
- (b) Thermal imaging of electrical connections and switchgear;
- (c) Verification of battery module balancing and calibration;
- (d) Inspection and cleaning of cooling systems (fans, filters, HVAC);
- (e) Verification of fire suppression system status;

- (f) Inspection of cable terminations and torque verification;
- (g) Review and update of firmware and software as recommended by OEM;
- (h) Functional testing of protection relays and safety systems;
- (i) Calibration of sensors and metering equipment;
- (j) Review of alarm and event logs;
- (k) Documentation and reporting of findings;

CYPRUS COASTAL PROTECTION (C5 Enclosure Maintenance):

- (l) Inspection of C5-rated coating integrity on enclosures, PCS, and switchgear;
- (m) Salt-deposit removal from HVAC intakes, ventilation grilles, and cooling air paths;
- (n) Inspection of door seals and gaskets for salt intrusion;
- (o) Verification of drainage channels and moisture egress paths;
- (p) Cleaning of external surfaces and removal of salt crystallisation;
- (q) Application of protective lubricant to door hinges, latches, and exposed fasteners;
- (r) Photographic documentation of coating condition for warranty records.

6.6 Quarterly Remote Health Check Scope

Each quarterly remote health check shall include:

- (a) Analysis of SOH trends and degradation patterns;
- (b) Review of thermal performance and cooling efficiency;
- (c) Assessment of cell imbalance and module performance;
- (d) Verification of communication and data integrity;
- (e) Recommendations for operational adjustments;
- (f) Written summary report to the Client.

6.7 Maintenance Scheduling

- (a) Quarterly Maintenance Visits shall be scheduled at least thirty (30) days in advance, at mutually agreed dates approximately three (3) months apart.
- (b) The Service Provider shall endeavour to schedule maintenance at times when the BESS is not actively dispatching, to minimise impact on Client operations.

Total Scheduled Downtime shall not exceed two (2) days (48 hours) per Park per calendar year, excluding Force Majeure events. Maintenance visits shall be pre-scheduled at least thirty (30) days in advance, confirmed by the Client, and performed in low-dispatch windows (preferably between 04:00 and 08:00 local time). Scheduled Downtime exceeding 48 consecutive hours per Park requires the Client's prior written approval except for safety emergencies.

- (d) The Client shall ensure site access and availability of relevant personnel during scheduled visits.
- (e) If the Client cancels or postpones a scheduled visit with less than fourteen (14) days' notice, reasonable rebooking costs may apply.

6.8 Maintenance Records

The Service Provider shall maintain detailed records of all maintenance activities, findings, and recommendations, and shall provide copies to the Client upon request.

6.9 OEM Coordination

Where maintenance activities require OEM involvement or specialised OEM parts, the Service Provider shall coordinate with the OEM on behalf of the Client.

7. SERVICE FEES AND PAYMENT

7.1 Annual Service Fee

The Client shall pay the Service Provider an annual Service Fee as set out in Schedule 2.

7.2 Payment Terms

(a) The Service Fee shall be invoiced annually in advance, commencing on the Commissioning Date.

(b) Payment shall be due within thirty (30) days of invoice date.

(c) All amounts are exclusive of VAT, which shall be charged in accordance with Cyprus law.

7.3 Fee Adjustment

The Service Fee is fixed for the Initial Term (five (5) years). No adjustment shall apply during the Initial Term. After the Initial Term, the Service Fee may be adjusted only by written agreement of both Parties.

(b) Any fee adjustment shall be notified in writing at least sixty (60) days prior to the anniversary date.

7.4 Additional Services

Any services outside the scope of this Agreement shall be quoted separately and charged at the Service Provider's then-current rates.

7.4A No additional charge for warranty-preserving services. No additional charge shall apply for services reasonably required to comply with the OEM manuals, preserve warranties, perform corrective maintenance within the selected Tier, prepare warranty claims, comply with agreed regulatory testing, deliver standard data exports, or remedy a Service Provider breach.

7.5 Late Payment

Late payments shall bear interest at the rate prescribed by EU Directive 2011/7/EU (the European Central Bank main refinancing rate plus three percent (3%) per annum), calculated on a simple interest basis, until paid in full.

8. RESPONSE TIMES AND SERVICE LEVELS

8.1 24/7 Monitoring Capability

The Service Provider shall maintain the following monitoring infrastructure:

(a) Automated Alert System: The Monitoring Platform shall automatically generate alerts based on predefined thresholds without requiring manual intervention;

(b) Multi-Channel Notification: Critical Alerts shall trigger immediate notifications via:

(i) SMS to duty technician's mobile phone;

(ii) Email to duty technician and operations manager;

(iii) Push notification via monitoring app (where available).

(c) Duty Roster: The Service Provider shall maintain a 24/7 duty roster with at least one qualified technician on-call at all times;

(d) Escalation Protocol: If the primary duty technician does not acknowledge a Critical Alert within one (1) hour, the system shall automatically escalate to the backup technician and operations manager.

8.1A Redundant monitoring. The Service Provider shall maintain redundant monitoring, alerting and communication channels, with automatic alerts to the Client for low SOC, low cell voltage, high temperature, HVAC/liquid-cooling fault, fire/gas alarm, PCS trip, communication loss and any condition that could void warranty. Failure of the monitoring platform shall itself be treated as a Major Alert (or Critical Alert where safety-related).

8.2 Response Time Commitments

The Service Provider commits to the following Response Times:

- (a) Critical Alerts: Initial remote response immediately upon alert generation (automated 24/7 platform); duty technician acknowledgement within thirty (30) minutes; on-site attendance (if required) within eight (8) hours. For any safety risk the Service Provider shall apply immediate remote isolation or safe-shutdown command without waiting for acknowledgement.
- (b) Major Alerts: Initial remote response within four (4) hours; on-site attendance (if required) within six (6) hours of the alert.
- (c) Minor Alerts: Initial remote response within twelve (12) hours; on-site attendance (if required) at the next scheduled maintenance visit or within five (5) Business Days, whichever is sooner.
- (d) Response Time Measurement: Response Time is measured from the timestamp of alert generation in the Monitoring Platform, not from Client notification.
- (e) Clarification — Response vs Resolution: The Response Times set out above apply to initial response and on-site attendance only. Resolution time depends on fault severity, spare parts availability, and OEM support requirements, and is not subject to the Response Time commitments in this Section.

8.2A Maximum Restoration and Resolution Times. Critical Alerts: safe remote isolation immediately where required; restoration plan within four (4) hours; safe partial or full restoration within twenty-four (24) hours where technically possible; permanent resolution within five (5) Business Days unless OEM parts are required. Major Alerts: restoration plan within one (1) Business Day; restoration within five (5) Business Days; permanent resolution within fifteen (15) Business Days. Minor Alerts: resolution at the next maintenance visit or within thirty (30) days, whichever is earlier. Any deviation requires a written remediation plan accepted by the Client, such acceptance not to be unreasonably withheld or delayed. These times are service targets and are subject to OEM part lead-times, Force Majeure and Client/site-access delays (which stop the clock); any service credit under Section 8.5 for a breach of these targets is not additional to the Availability Liquidated Damages for the same downtime.

8.3 Response Scope

Initial response shall include:

- (a) Acknowledgement of the issue;
- (b) Remote diagnosis where possible;
- (c) Preliminary assessment and recommended actions;
- (d) Escalation to OEM if required.

8.3A On-Site Attendance

Where on-site attendance is required:

- (a) The Service Provider shall dispatch qualified personnel to the Site;
- (b) Travel time shall not count toward Response Time;
- (c) The Client shall ensure site access and cooperation.

8.4 Exclusions from SLA

Response Time commitments shall not apply to:

- (a) Issues caused by Client actions or third parties;
- (b) Force Majeure events;
- (c) Issues related to grid or external infrastructure;
- (d) Scheduled downtime or maintenance windows.

8.5 Service Level Credits

(a) Critical Alert Breach: Where the Service Provider fails to achieve on-site attendance within the eight (8) hour commitment for a Critical Alert, the Client shall be entitled to a service credit of one hundred euros (€100) for each Business Day of delay beyond that commitment, up to a maximum of one thousand euros (€1,000) per incident.

(b) Major Alert Breach: Where the Service Provider fails to achieve on-site attendance within the five (5) Business Day commitment for a Major Alert, the Client shall be entitled to a service credit of fifty euros (€50) for each Business Day of delay beyond that commitment, up to a maximum of five hundred euros (€500) per incident.

(c) Quarterly Cap: The total Service Level Credits payable under this Section 8.5 in any calendar quarter shall not exceed ten percent (10%) of the quarterly Service Fee for that quarter.

(d) Remediation Plan: Where three (3) or more Service Level breaches occur in any calendar quarter, the Client may request a written remediation plan from the Service Provider. The Service Provider shall deliver such plan within fourteen (14) days of the request, detailing root cause analysis and corrective actions.

(e) Sole Remedy: The Service Level Credits set out in this Section 8.5 shall be the Client's sole and exclusive remedy for failure to meet the Response Time commitments, and the Client shall not be entitled to claim additional damages for Response Time breaches beyond the Service Level Credits.

8.6 Escalation Protocol

The Service Provider shall maintain the following escalation procedure for Critical Alerts:

(a) Acknowledgement: All Critical Alerts shall be acknowledged by the duty technician within one (1) hour of alert generation.

If the primary duty technician does not acknowledge a Critical Alert within thirty (30) minutes, the Monitoring Platform shall automatically escalate the alert to the backup technician

If on-site attendance has not been dispatched within two (2) hours of a Critical Alert, the operations manager shall escalate

(d) Client Notification: The Client shall receive status updates at intervals of no more than two (2) hours from the time of a Critical Alert until the issue is resolved or the situation is stabilised.

8.6A Major Incident Procedure. For any fire, thermal event, repeated trip, forced outage exceeding twenty-four (24) hours, cyber incident, grid-code breach, warranty-threatening event, or unavailable capacity exceeding 10% of a Park, the Service Provider shall notify the Client immediately, issue an initial incident report within twenty-four (24) hours and a root-cause analysis thereafter, and keep the Client updated until closure.

8.7 Coverage Hours

(a) The Response Time commitments set out in Section 8.2 for Critical Alerts and Major Alerts operate as follows: remote monitoring and remote response operate 24/7/365. On-site attendance commitments under Section 8.2 apply on Business Days; for Critical Alerts arising on weekends, public holidays, or night hours, on-site attendance is on a reasonable-endeavours basis with immediate remote isolation available, and the annual Availability Guarantee (Section 9) is the primary performance commitment.

(b) The Response Time commitment for Minor Alerts applies during business hours (Monday to Friday, 08:00–17:00 local time), excluding public holidays. Where a Minor Alert is raised outside business hours, the Response Time shall commence at the start of the next business day.

(c) The Service Provider shall maintain a staffed duty roster at all times sufficient to meet the 24/7/365 commitment for Critical and Major Alerts, with a minimum of one (1) qualified technician on-call and a designated backup at all times.

8.7A Safety-critical 24/7 response. Critical Alerts, safety incidents, fire-system alarms, warranty-voiding SOC/voltage alerts, cyber incidents and complete Park outages require 24/7/365 operational response. On-site attendance for safety-critical events shall not be limited to Business Days where local personnel or emergency-contractor attendance is reasonably available.

9. AVAILABILITY GUARANTEE (TIER C AND D ONLY)

9.1 Availability Commitment

Where the Client has selected Tier C services, the Service Provider guarantees that the BESS systems covered under this Agreement shall achieve a minimum annual Availability of ninety-seven percent (97%), calculated at the Group Level in accordance with Schedule 4.

9.2 Calculation of Availability

Availability shall be calculated on a Group Aggregate basis across all parks covered under this Agreement, as follows:

Group Availability (%) = $\left[\frac{\text{SUM(Available Hours per Park)}}{\text{SUM(Total Hours per Park)}} \right] \times 100$

Where:

(a) Total Hours per Park = 8,760 hours per year (or 8,784 in a leap year), commencing from the PAC date for each park;

(b) Unavailable Hours per Park = hours during which that park's BESS is unable to operate at its rated capacity due to equipment fault, failure, or Service Provider-caused downtime;

(c) Parks are added to the Group Availability calculation from their respective PAC dates — the guarantee accumulates as parks are commissioned and activated under this Agreement;

(d) For partial years (the year of commissioning), only the period from PAC to year-end is included in the calculation for that park.

9.2A Group-Level Availability Rationale and LD Protection

The 97% Availability Guarantee applies at the Project level across Galascope 1 and Galascope 2 in aggregate, consistent with the Parties' agreement. An isolated park outage does not constitute a breach of the guarantee provided the weighted average availability across both Project parks exceeds 97%. This structure was agreed by the Parties and reflects the aggregated (project-level) basis under which the Tier C service fee was agreed. Note: the group-level calculation does not eliminate the financial consequence of individual park underperformance — the Availability LD cap has been increased to fifty percent (50%) of the annual Service Fee (Section 9.5) to provide meaningful compensation even where one park drives

the shortfall. The Parties acknowledge that requiring per-park 97% guarantees on individual smaller parks would require a materially higher service fee and was not the basis on which the Tier C fee was agreed.

9.3 Exclusions from Unavailable Hours

The following shall not count as Unavailable Hours:

(maximum 48 hours / 2 days per year per Park)

(b) Downtime caused by grid unavailability, curtailment, or grid operator instruction;

(c) Downtime caused by Force Majeure events;

(d) Downtime caused by Client actions, third parties, or unauthorised modifications;

(e) Downtime caused by EMS or third-party system failures — except that this exclusion shall not apply where the EMS failure is attributable to DISPERON (Disperon Sp. z o.o. — the EMS provider, which remains responsible for EMS performance under this Agreement) or any other entity within the Lighthief group of companies, or is caused by the Service Provider's configuration, monitoring, integration or cyber-security controls;

(f) Periods during which the BESS is not dispatched by the Client or market operator.

9.4 Availability Liquidated Damages

If the annual Availability falls below 97%, the Service Provider shall pay Liquidated Damages to the Client as follows:

(a) Availability 95% to < 97%: Five percent (5%) reduction in annual Service Fee;

(b) Availability 93% to < 95%: Ten percent (10%) reduction in annual Service Fee;

(c) Availability 90% to < 93%: Fifteen percent (15%) reduction in annual Service Fee;

(d) Availability below 90%: Twenty percent (20%) reduction in annual Service Fee.

9.5 Cap on Availability Liquidated Damages

The maximum Availability Liquidated Damages payable in any year shall not exceed fifty percent (50%) of the annual Service Fee per Park. This cap shall not apply to wilful default or gross negligence by the Service Provider.

9.6 Sole Remedy

The Availability Liquidated Damages set out in this Section are the agreed primary remedy for ordinary failure to achieve the Availability Guarantee. They shall not exclude the Client's right to claim for wilful default, gross negligence, or repeated safety incidents by the Service Provider, for which the general liability provisions of Section 14 apply.

9.7 Enhanced Availability Option

Subject to separate written agreement and additional fees, the Service Provider may offer an enhanced Availability Guarantee of ninety-eight percent (98%) or higher, with adjusted Liquidated Damages as agreed between the Parties.

9.8 Chronic underperformance. If Availability for any Park is below 95% in any contract year, or below 97% for two consecutive years, or there are three or more Critical Alert SLA breaches in a rolling twelve (12) months, the Client may require a remediation plan, an independent technical audit at the Service Provider's cost and additional spare stock.

10. STATE OF HEALTH (SOH) AND PERFORMANCE WARRANTY (OEM-BACKED, FACILITATED BY SERVICE PROVIDER)

10.1 SOH Guarantee — OEM Pass-Through

- (a) Where the Client has selected Tier C services, the Service Provider guarantees that the BESS shall maintain a minimum State of Health in accordance with the Degradation Curve set out in Schedule 5.
- (b) OEM-Backed Guarantee: The SOH Guarantee is a pass-through guarantee provided by the OEM (Linyang) and is backed by the OEM's warranty reserve. The Service Provider's obligation under this Section is to facilitate the OEM's warranty and ensure proper maintenance is performed.
- (c) Manufacturing Defect Determination: Where SOH underperformance is attributable to a manufacturing defect or design flaw in the OEM equipment, the OEM's determination of the defect shall govern. The Service Provider shall facilitate the warranty claim process with the OEM.
- (d) No Double Liability: The Service Provider shall not be liable under both this Section 10 and Section 14.5 for the same underlying issue. Where SOH underperformance is caused by an OEM manufacturing defect, the remedy shall be through the OEM warranty, not through the Service Provider's direct liability.

10.2 Guaranteed SOH Levels

The Guaranteed SOH at the end of each contract year shall be as follows (subject to adjustment based on actual cycling and operating conditions):

- (a) End of Year 1: 94.62% of original rated capacity;
- (b) End of Year 2: 91.77% of original rated capacity;
- (c) End of Year 3: 89.91% of original rated capacity;
- (d) End of Year 4: 88.00% of original rated capacity;
- (e) End of Year 5: 86.78% of original rated capacity;
- (f) End of Year 10: 79.58% of original rated capacity;
- (g) End of Year 15: 73.61% of original rated capacity.

Note: The maximum SOH Guarantee period available from the OEM is fifteen (15) years. SOH Guarantees beyond Year 15 are not available. The above values are based on 1 cycle per day operation and are subject to the OEM's confirmed degradation profile.

The Year 10 and Year 15 Guaranteed SOH values above are each conditional on the Client having elected and paid for the corresponding OEM extended warranty (Years 6–10 and/or Years 11–15 respectively, per EPC Agreement Section 10.6-EXT and Schedule 2 of this Agreement). The decision to extend is with the Client; if the Client does not extend, the Guaranteed SOH under this Agreement is the Year 5 value ($\geq 86.78\%$), and the Year 10/Year 15 values above do not apply.

10.3 SOH Measurement

- (a) SOH shall be measured at least annually using OEM-approved testing protocols.
- (b) The Service Provider shall provide the Client with a written SOH certificate following each annual measurement.
- (c) The Client may request additional SOH measurements at the Client's cost.

10.3A Witnessed SOH/RTE testing. SOH, usable AC capacity and RTE testing shall be performed under a pre-agreed protocol consistent with the EPC, Technical Agreements and OEM Warranty Terms. The Client and lender's Independent Engineer may witness testing. If an additional test requested by the Client confirms underperformance or a warranty issue, the Service Provider shall bear the test cost.

10.4 Remedies for SOH Underperformance

If the measured SOH falls below the Guaranteed SOH, the Service Provider shall provide the following tiered remedies:

(a) ISOLATED MODULE FAILURES (affecting less than 5% of total capacity):

(i) The Service Provider shall replace or repair the affected modules at no cost to the Client;

(ii) Replacement shall occur within sixty (60) days of identification;

(iii) Replacement modules shall be new or equivalent to new in performance;

(iv) OEM Warranty: Module replacements are sourced through the OEM warranty reserve where the failure is attributable to manufacturing factors. The OEM covers replacement components only; service fees, on-site replacement labor, and logistics costs are borne by the Service Provider and are included in the Tier C Service Fee.

(b) SYSTEMIC UNDERPERFORMANCE (affecting 3% or more of total capacity):

(i) The Service Provider shall, at its option, either:

Augment the BESS with additional cells to restore capacity to the Guaranteed SOH; or

Pay Liquidated Damages calculated as the cost to restore the system to Guaranteed SOH.

(ii) If augmentation is chosen, it shall be completed within one hundred twenty (120) days;

(iii) OEM-Backed Augmentation: The Service Provider's augmentation obligation is backed by a contractual commitment from the OEM to supply replacement cells under the OEM warranty reserve for SOH underperformance attributable to manufacturing factors or normal degradation exceeding the specified curve. The OEM covers replacement components only; service fees, on-site installation labor, and logistics costs are included in the Tier C Service Fee;

(iv) Where augmentation cells are provided by the OEM under warranty, the Service Provider shall coordinate installation and commissioning;

(v) Where SOH underperformance is caused by Client misuse, operational non-compliance, or factors excluded under Section 10.7, the augmentation obligation does not apply.

(c) OEM INSOLVENCY OR DEFAULT:

If the OEM fails to honour its warranty obligations (including due to insolvency, refusal, or cessation of business):

(i) The Service Provider shall use commercially reasonable efforts to source equivalent replacement cells from alternative suppliers;

(ii) The Service Provider's liability shall be limited to the caps set out in Section 10.5;

(iii) The Service Provider may, at its option, reduce the scope of services and refund a pro-rata portion of Tier C premiums paid;

(iv) The Client shall have the right to request a proportional reduction in Service Fees.

10.4A SOH remedy — scope. Remedies for SOH underperformance shall restore the Client to the guaranteed position and shall include parts, labour, installation, recommissioning, testing, documentation and data updates. Shipping, customs and craneage attributable to an OEM warranty return shall be OEM-funded; the Service Provider shall manage and evidence the OEM claim. This does not apply to the extent a Client-caused exclusion directly caused the underperformance.

10.5 SOH Liquidated Damages Calculation

Where Liquidated Damages are payable for SOH underperformance:

(a) The Liquidated Damages shall equal the replacement cost of the capacity shortfall, calculated as:

$LD = (\text{Guaranteed SOH} - \text{Actual SOH}) \times \text{System Capacity} \times \text{the prevailing market per-kWh rate for equivalent battery modules}$

(b) The per-kWh rate shall be the prevailing market rate for equivalent battery modules at the time of claim;

(c) The maximum SOH Liquidated Damages payable over the Term shall not exceed fifty percent (50%) of the total Service Fees paid.

10.6 OEM Warranty Reserve

The SOH Guarantee is backed by the OEM's warranty reserve. The Service Provider shall ensure that adequate warranty provisions are maintained with the OEM to fulfil the obligations under this Section.

10.6A OEM reserve evidence. The Service Provider shall provide annual evidence that the OEM warranty reserve, extended warranty, spare-part access and OEM support arrangements remain valid for the Project, and shall notify the Client within five (5) Business Days of any OEM dispute, insolvency risk, supply restriction, product recall, safety notice or firmware issue affecting the Project.

10.7 Exclusions from SOH Guarantee

The SOH Guarantee shall not apply to capacity loss caused by:

- (a) Operation outside OEM-specified parameters;
- (b) Excessive cycling beyond design specifications;
- (c) Extreme temperature exposure beyond design limits;
- (d) Physical damage, vandalism, or Force Majeure;
- (e) Client modifications or third-party interventions not approved by the Service Provider.

10.8 Performance Testing

- (a) The Service Provider shall conduct annual performance tests to verify system capacity and efficiency.
- (b) Performance tests shall be conducted in accordance with IEC standards or OEM-specified protocols.
- (c) Test results shall be documented and provided to the Client within ten (10) Business Days of testing.

11. SPARE PARTS AND CONSUMABLES

11.1 Consumables

The Service Fee includes standard consumables required for preventive maintenance, including filters, cleaning materials, and minor fasteners.

11.2 Spare Parts – Tier A and B

For Tier A and B services:

- (a) Replacement of spare parts beyond consumables is not included in the Service Fee;
- (b) The Service Provider shall maintain a recommended spare parts list and advise the Client on optimal inventory levels;
- (c) Spare parts may be supplied by the Service Provider at then-current prices, or sourced by the Client from approved suppliers.

11.3 Spare Parts – Tier C and D (Local Warehouse)

For Tier C and D services:

- (a) The Service Provider shall establish and maintain a local spare parts warehouse in Cyprus;
- (b) The local warehouse shall stock critical spare parts sufficient to address common failures within twenty-four (24) hours;
- (c) The cost of maintaining the local warehouse is included in the Service Fee for Tier C and D;
- (d) Critical spare parts stocked in the local warehouse include, at minimum: (Note: full transformer unit stocking is subject to further discussion given the distinct transformer ratings across Galascope 1 and Galascope 2; the Parties shall agree a transformer-spares arrangement within thirty (30) days of the LTSA Effective Date. In the interim, the Service Provider commits to a four (4) week OEM supply lead-time for transformer units.) Critical sub-components include:
 - (i) BMS controllers and communication modules;
 - (ii) Cooling system components (fans, filters, sensors);
 - (iii) Fuses, contactors, and protection devices;
 - (iv) PCS control boards and power modules;
 - (v) Battery module balancing equipment.

11.3A Local spare-parts warehouse. A local spare-parts warehouse shall be operational no later than PAC, holding an agreed minimum stock of critical sub-components (control boards, sensors, fans, fuses, contactors) with part numbers, compatibility references, storage conditions and replenishment deadlines. Failure to maintain the agreed stock is a Service Provider default and related downtime counts as Unavailable. Stocking of full PCS units and transformers is subject to further agreement; in the interim these are supported by a four (4) week OEM supply commitment.

11.4 Warranty Parts

Parts replaced under the OEM warranty during the warranty period shall be provided at no additional cost, subject to OEM warranty terms.

11.5 Major Component Replacement

- (a) Replacement of major components (battery modules, PCS units, transformers) shall be subject to separate quotation unless covered by warranty or SOH Guarantee.
- (b) The Service Provider shall use commercially reasonable efforts to source replacement components within thirty (30) days of order.

11.6 Obsolescence and equivalent replacement. The Service Provider shall use commercially reasonable efforts to support the availability of compatible spare parts, firmware and replacement components for at least fifteen (15) years. If an original component is obsolete, it shall provide an equivalent or better compatible replacement without loss of warranty, certification or grid-code compliance.

12. CLIENT OBLIGATIONS

12.1 Site Access

The Client shall provide safe and timely access to the Site for the Service Provider's personnel.

12.2 Cooperation

The Client shall:

- (a) Designate a primary contact person for communication;
- (b) Provide relevant site information, drawings, and documentation;

- (c) Notify the Service Provider promptly of any issues, alarms, or incidents;
- (d) Ensure the BESS is operated in accordance with OEM guidelines.

12.3 Internet Connectivity

The Client shall maintain reliable internet connectivity at the Site sufficient for remote monitoring data transmission.

12.4 Insurance

- (a) The Client shall maintain appropriate insurance coverage for the BESS and Site, including:
 - (i) Property/asset insurance covering the full replacement value of the BESS;
 - (ii) Operational liability insurance;
 - (iii) Business interruption insurance (recommended).
- (b) The Service Provider maintains General Commercial Liability Insurance of minimum EUR 1,000,000 and Professional Indemnity Insurance of minimum EUR 2,000,000.
- (c) Each Party shall provide evidence of insurance upon reasonable request.

12.5 Operational Compliance

The Client shall:

- (a) Operate the BESS within OEM-specified parameters;
- (b) Not modify, alter, or repair the BESS without the Service Provider's written approval;
- (c) Maintain monitoring alert thresholds as specified in Section 10.5 of the EPC Agreement;
- (d) Ensure the BESS is not left in low voltage or low SOC conditions that would void the warranty;
- (e) Maintain site security and environmental controls.

12.6 Payment Obligations

The Client shall pay all Service Fees when due. Time is of the essence regarding payment.

12.7 CONSEQUENCES OF CLIENT BREACH

- (a) Non-Payment: If the Client fails to pay any Service Fee when due:
 - (i) Interest shall accrue at the rate prescribed by EU Directive 2011/7/EU (ECB main refinancing rate plus three percent (3%) per annum, simple interest) on overdue amounts;
 - (ii) The Service Provider may suspend monitoring and maintenance services upon fourteen (14) days' written notice;
 - (iii) All guarantees under this Agreement (Availability, SOH) shall be suspended during the period of non-payment;
 - (iv) If payment remains overdue for more than sixty (60) days, the Service Provider may terminate this Agreement immediately.
- (b) Access Denial: If the Client fails to provide site access for a scheduled Maintenance Visit:
 - (i) The Service Provider shall not be liable for any issues that would have been detected or prevented by the missed visit;
 - (ii) The Availability and SOH Guarantees shall be suspended until the next completed Maintenance Visit;
 - (iii) The Client shall reimburse the Service Provider for wasted travel and personnel costs.

(c) Operational Non-Compliance: If the Client breaches Section 12.5:

(i) The Service Provider shall have no liability for any resulting equipment damage or performance degradation;

(ii) Such damage shall be excluded from Availability and SOH calculations;

(iii) The Client shall indemnify the Service Provider against any claims arising therefrom.

(d) Internet Connectivity Failure: If the Client fails to maintain internet connectivity:

(i) The Service Provider shall have no liability for delayed response to alerts or issues;

(ii) Periods without connectivity shall be excluded from Availability calculations;

(iii) The monitoring SLA shall be suspended.

12.5A / 12.7A Client obligations and suspension — causation. The Client's operational obligations shall not be treated as breached where the relevant condition was caused by EMS/BMS/PCS malfunction, Service Provider monitoring failure, Force Majeure, or the Service Provider's failure to provide timely alerts or operating instructions. Suspension of the Availability, SOH or warranty-related guarantees applies only to the extent a Client breach directly caused the non-performance, and only after written notice, a reasonable cure opportunity and Service Provider mitigation. Non-payment of genuinely disputed amounts shall not suspend safety monitoring, warranty-preservation alerts or data access.

13. TERM AND TERMINATION

13.1 Initial Term

This Agreement shall commence on the Commissioning Date and continue for an initial term of five (5) years ("Initial Term").

13.2 Renewal

Upon expiry of the Initial Term, this Agreement shall automatically renew for successive periods of one (1) year each, unless either Party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

13.3 Termination for Cause

Either Party may terminate this Agreement immediately upon written notice if the other Party:

(a) Commits a material breach and fails to cure such breach within thirty (30) days of written notice; or

(b) Becomes insolvent, enters liquidation, or ceases to carry on business.

13.4 Termination for Convenience

The Client may terminate this Agreement for convenience by providing ninety (90) days' written notice. The Service Provider may terminate for convenience only after the Initial Term, by providing twelve (12) months' written notice, provided that such termination shall not prejudice warranty, data-handover or transition obligations.

13.5 Effect of Termination

Upon termination:

(a) All outstanding Service Fees shall become immediately due and payable;

(b) The Service Provider shall provide the Client with all Performance Data and maintenance records;

(c) The Service Provider shall cooperate in the transition to any successor service provider;

(d) Provisions relating to data ownership, confidentiality, and limitation of liability shall survive termination.

13.6 Transition assistance. On expiry or termination the Service Provider shall provide up to ninety (90) days of transition assistance at agreed rates, including data export, passwords and access credentials, configuration files, register maps, firmware records, maintenance records, open-incident files, spare-parts list and warranty-claim files.

14. LIMITATION OF LIABILITY

14.1 Exclusion of Consequential Damages

To the maximum extent permitted by law, neither Party shall be liable for any indirect, incidental, special, consequential, or punitive damages, including loss of profit, loss of revenue, loss of use, or business interruption.

14.2 Liability Cap

The Service Provider's total aggregate liability under this Agreement shall not exceed the total Service Fees paid by the Client in the twenty-four (24) months preceding the claim. This cap shall not apply to wilful misconduct, gross negligence, fraud, breach of confidentiality, or the carve-outs in Section 14.3.

14.3 Carve-Outs

The limitations in this Section shall not apply to:

- (a) Liability arising from wilful misconduct or gross negligence;
- (b) Breach of confidentiality obligations;
- (c) Indemnification obligations.

14.4 No Liability for Third-Party Systems

The Service Provider shall have no liability for issues arising from:

- (a) EMS or other third-party software;
- (b) Grid or utility infrastructure;
- (c) Equipment not supplied by the Service Provider.

14.3A / 14.4A Additional liability carve-outs. The liability limitations shall not apply to: cyber-security breach or unauthorised remote access caused by Service Provider systems; loss, corruption or withholding of Client data; regulatory or grid-code non-compliance within Service Provider scope; or safety incidents caused or worsened by Service Provider breach. Third-party-system exclusions shall not apply where the Service Provider selected, configured, integrated, maintained, monitored or recommended the relevant system, or where the fault arises at an interface for which the Service Provider or its affiliates are responsible.

14.5 OEM EQUIPMENT – SERVICE PROVIDER PROTECTION

- (a) Service Provider Role: The Service Provider is an operations and maintenance contractor, NOT the manufacturer of the BESS equipment.
- (b) No Manufacturing Liability: The Service Provider shall NOT be liable for:
 - (i) Manufacturing defects in OEM-supplied equipment;
 - (ii) Design defects in OEM equipment or software;
 - (iii) OEM firmware or software failures;

- (iv) Battery degradation exceeding the OEM's specified degradation curve;
- (v) Equipment performance below OEM specifications where caused by manufacturing factors.
- (c) OEM Warranty Facilitation: The Service Provider shall use reasonable efforts to facilitate warranty claims with the OEM, but the ultimate warranty obligation lies with the OEM.
- (d) Availability Guarantee Exclusions: For the purposes of calculating Availability under Schedule 4, the following shall be excluded:
 - (i) Downtime caused by OEM manufacturing defects pending OEM repair;
 - (ii) Downtime caused by OEM firmware/software bugs pending OEM patch;
 - (iii) Downtime caused by Force Majeure events;
 - (iv) Downtime caused by Client-caused issues under Section 14.6.

14.5A OEM claim management. For claims relating to OEM equipment defects the Service Provider shall actively manage, prosecute and evidence the claim with the OEM, and remains liable for loss caused by its failure to preserve warranty rights, perform maintenance, maintain records/spares, mitigate downtime, implement temporary solutions or comply with its service obligations.

14.6 CLIENT-CAUSED ISSUES – NO SERVICE PROVIDER LIABILITY

The Service Provider shall have NO liability for issues arising from:

- (a) Client operation of the BESS contrary to OEM guidelines or Service Provider instructions;
- (b) Client modifications, repairs, or maintenance not performed by authorised personnel;
- (c) Client failure to provide remote access or site access as required;
- (d) Client failure to maintain site security, environmental controls, or insurance;
- (e) Client interference with Service Provider monitoring or maintenance activities;
- (f) Third-party EMS, grid infrastructure, or utility issues;
- (g) Client's breach of any obligation under this Agreement or the EPC Agreement.

14.7 INDEMNIFICATION

(a) Client Indemnity to Service Provider: The Client shall indemnify and hold harmless the Service Provider against all claims, losses, damages, costs, and expenses arising from:

- (i) Client's breach of this Agreement;
- (ii) Client's negligent or wilful acts or omissions;
- (iii) Third-party claims arising from Client's operation of the BESS;
- (iv) Client modifications without Service Provider approval.

(b) Service Provider Indemnity to Client: The Service Provider shall indemnify the Client against claims arising from:

- (i) Service Provider's negligent acts during maintenance visits;
- (ii) Personal injury or property damage directly caused by Service Provider's personnel;
- (iii) Service Provider's breach of its maintenance obligations under this Agreement.

(c) OEM Defects: For claims relating to OEM equipment defects, the Service Provider shall facilitate the claim with the OEM but shall NOT be liable for OEM failures.

15. CONFIDENTIALITY

15.1 Confidential Information

Each Party shall keep confidential all non-public information disclosed by the other Party, including technical data, commercial terms, and Performance Data.

15.2 Permitted Disclosure

Confidential information may be disclosed:

- (a) To employees, contractors, and advisors on a need-to-know basis;
- (b) As required by law or regulatory authority;
- (c) With the prior written consent of the disclosing Party.

15.3 Duration

Confidentiality obligations shall survive termination of this Agreement for a period of five (5) years.

16. FORCE MAJEURE

16.1 Definition

Neither Party shall be liable for delay or failure to perform due to events beyond its reasonable control, including acts of God, war, terrorism, natural disasters, pandemics, governmental actions, grid failures, or transportation disruptions.

16.2 Notification

The affected Party shall notify the other Party promptly and use reasonable efforts to mitigate the effects of the Force Majeure event.

16.3 Suspension

Affected obligations shall be suspended for the duration of the Force Majeure event.

16.4 Force Majeure — limitations. Force Majeure shall not excuse obligations to maintain monitoring where technically possible, provide data, issue alerts, preserve warranty rights, mitigate downtime, maintain insurance, protect cyber-security, deliver records, or perform obligations capable of being performed remotely.

17. COMPLIANCE AND ANTI-BRIBERY

17.1 Compliance with Laws

Each Party shall comply with all applicable laws and regulations, including anti-corruption, anti-bribery, anti-money laundering, and trade sanctions laws.

17.2 Anti-Bribery

Neither Party shall, directly or indirectly, offer, promise, give, or authorise the giving of any bribe, kickback, or other improper payment to any person in connection with this Agreement.

17.3 Audit Rights

Each Party shall maintain accurate books and records and shall permit the other Party to audit compliance with this Section upon reasonable notice.

18. DATA PROTECTION

18.1 GDPR Compliance

Where personal data is processed in connection with this Agreement, the Parties shall comply with the General Data Protection Regulation (EU) 2016/679 ("GDPR") and applicable Cyprus data protection laws.

18.2 Data Processing

The Service Provider shall process personal data only as necessary for the performance of this Agreement and in accordance with the Client's instructions.

18.3 Data Security

The Service Provider shall implement appropriate technical and organisational measures to protect personal data against unauthorised access, loss, or destruction.

18A Cyber security (framework). The Service Provider shall implement and maintain cyber-security controls for the industrial control systems consistent with recognised good practice (IEC 62443 principles), including multi-factor authentication, role-based access control, secure remote access, encryption in transit and at rest, audit logs, least-privilege accounts, vulnerability management, firmware-integrity controls and annual access review. The specific control set and any formal IEC 62443 / NIS2 certification shall be confirmed with the ICS/EMS provider (DISPERON).

19. REGULATORY COMPLIANCE

19.1 Applicable Regulations

The ongoing operation of the BESS is subject to:

- (a) N.180(I)/2025 and N.181(I)/2025 (Road and Building Regulations);
- (b) EAC Technical Guide for Storage - Edition 2025;
- (c) EAC Universal Technical Guide for RES - Edition 2025;
- (d) Cyprus Fire Safety Regulations;
- (e) Cyprus Environmental Regulations.

19.2 Ongoing Regulatory Compliance

The Service Provider shall:

- (a) Maintain the Equipment in compliance with all applicable Cyprus DSO regulations;
- (b) Ensure protection settings remain as approved by the DSO;
- (c) Notify the Client of any regulatory changes affecting the BESS;
- (d) Coordinate with DSO on any required regulatory inspections or audits;
- (e) Maintain fire safety systems in operational condition;
- (f) Ensure SCADA and remote control systems remain fully functional.

19.3 Periodic Testing Requirements

The Service Provider shall perform the following regulatory compliance tests:

- (a) Annual protection relay testing (all protection functions);
- (b) Annual ground resistance testing (must not exceed 4Ω);
- (c) Annual insulation resistance testing (> 1MΩ);
- (d) Annual SCADA signal verification;
- (e) Fire detection system testing per Cyprus regulations;
- (f) Fire suppression system inspection per Cyprus regulations;
- (g) Emergency stop function testing.

19.4 DSO Reporting

The Service Provider shall:

- (a) Report faults to DSO as required (within 24-48 hours);
- (b) Submit generation/consumption data as required by DSO schedule;
- (c) Notify DSO of planned outages (minimum 7 days advance);
- (d) Report emergency outages immediately (phone + email);
- (e) Cooperate with DSO on system performance monitoring;
- (f) Report protection trips with documentation.

19.5 SCADA Compliance

The Service Provider shall ensure:

- (a) All mandatory telemetry signals remain operational (P, Q, V, I, f, SOC, SOH);
- (b) All remote commands respond correctly (P-set, Q-set, start/stop, zero-export);
- (c) IEC 60870-5-104 communication link to EAC SCADA maintained;
- (d) Power Quality Analyzer generating PQDIF & COMTRADE data;
- (e) Monthly verification of remote control functionality.

19.5A SCADA/DSO communication failures. SCADA/DSO communication failures attributable to the Service Provider, EMS/SCADA configuration, protocol mapping, firmware changes, communication gateway, maintenance activity or cyber-security controls shall count as Unavailable Hours where they prevent dispatch, monitoring, regulatory reporting or DSO-approved operation.

19.6 Fire Safety Compliance

The Service Provider shall:

- (a) Maintain fire detection systems in operational condition;
- (b) Verify fire suppression system pressure and readiness;
- (c) Test emergency stop functions during each maintenance visit;
- (d) Ensure fire extinguishers are present and within date;
- (e) Maintain fire access roads clear (minimum 6m width);
- (f) Cooperate with Fire Authority inspections.

19.7 Environmental Compliance

The Service Provider shall:

- (a) Ensure no uncontrolled pollution or discharge;
- (b) Maintain cooling systems per F-gas regulations;
- (c) Coordinate end-of-life battery recycling per environmental requirements;
- (d) Maintain vegetation clearance around installation.

19.8 Documentation

The Service Provider shall maintain the following records for regulatory compliance:

- (a) Protection relay test certificates (annual);

- (b) Ground resistance test reports (annual);
- (c) Insulation resistance test reports (annual);
- (d) SCADA signal verification reports (annual);
- (e) Fire system test reports;
- (f) Maintenance logs;
- (g) Fault incident reports;
- (h) DSO notification records;
- (i) Spare parts replacement records.

19.8A Editable documentation. Documentation shall be provided in editable electronic format where reasonably available, including native settings/configuration files, relay settings, SCADA point lists, Modbus/IEC 61850/IEC 60870-5-104 maps, firmware versions, access-control handover records, maintenance photographs and independent test certificates.

19.9 Personnel Qualifications

All maintenance personnel shall:

- (a) Hold valid electrical competency certifications as required by Cyprus law;
- (b) Be trained on OEM (Linyang) procedures and equipment;
- (c) Be familiar with EAC Technical Guide requirements;
- (d) Be trained in fire safety and emergency response procedures;
- (e) Be trained in SCADA/remote control system operation.

19.10 Regulatory Inspection Support

The Service Provider shall:

- (a) Make personnel available for DSO or Fire Authority inspections;
- (b) Provide all requested documentation within 5 working days;
- (c) Accompany inspectors during site visits;
- (d) Address any inspection findings within agreed timeframes.

20. GOVERNING LAW AND DISPUTE RESOLUTION

20.1 Governing Law: This Agreement shall be governed by and construed in accordance with the laws of the Republic of Cyprus.

20.2 Jurisdiction: Any dispute arising out of or in connection with this Agreement shall be submitted to the exclusive jurisdiction of the courts of the Republic of Cyprus.

20.3 Amicable Resolution: Prior to commencing legal proceedings, the Parties shall attempt to resolve any dispute through good faith negotiation for a period of thirty (30) days.

20.4 Official Language:

- (a) The official and legally binding language of this Agreement is English.
- (b) Any translation into Greek or any other language is for convenience only and has no legal effect.
- (c) In the event of conflict, the English version shall prevail.

20.5 Expert determination. Technical disputes concerning Availability, SOH, RTE, capacity, root cause, warranty attribution, excluded hours or service failure may be referred by either Party to an independent technical expert agreed by the Parties or appointed by the President of ETEK. The expert's determination shall be binding absent manifest error.

21. MISCELLANEOUS

21.1 Entire Agreement

This Agreement, together with its Schedules, constitutes the entire agreement between the Parties in relation to its subject matter.

21.2 Amendments

Any amendment to this Agreement shall be valid only if made in writing and signed by authorised representatives of both Parties.

21.3 Assignment

Neither Party may assign this Agreement without the prior written consent of the other Party, except to an Affiliate as part of a corporate reorganisation.

21.3A Assignment for Security

(a) The Client may assign its rights under this Agreement to a project finance lender or secured creditor for the purposes of granting security over the BESS or the Client's rights under this Agreement, without the Service Provider's consent.

(b) Upon enforcement of such security, the Service Provider shall recognise the lender as the Client, provided payment obligations are assumed.

21.3B Lender step-in. Any project-finance lender or security agent may step in, receive notices, cure Client defaults, assume payment obligations, enforce this Agreement, direct payment of proceeds and require continued performance for a reasonable cure period following an enforcement event. The Service Provider shall, acting reasonably, enter into a direct agreement with the lender/security agent.

21.3C Assignment — Client financing. The Client may assign or charge its rights under this Agreement and any proceeds to any project-finance lender, security agent, refinancing lender, purchaser of the Project or successor owner without the Service Provider's consent.

21.4 Notices

All notices shall be in writing and delivered to the addresses specified above or as otherwise notified by a Party.

21.5 Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

21.6 Waiver

No waiver of any provision shall be effective unless in writing. Failure to enforce any provision shall not constitute a waiver.

21.7 Counterparts

This Agreement may be executed in counterparts and by electronic signature.

SCHEDULE 1 – SITE AND EQUIPMENT DETAILS

SITE INFORMATION

Site Name: [●]
Site Address: [●]
GPS Coordinates: Lat [●] Long [●]
Distance from Sea: [●] km (affects warranty – see EPC Agreement)

EQUIPMENT SUMMARY

Item	Description	Quantity	Serial Number
-----	-----	-----	-----
Battery Container	Linyang Power Atlantic 5MWh	[●]	[●]
Power Conversion System	[●] MW PCS	[●]	[●]
Transformer	[●] MVA Transformer	[●]	[●]
EMS	DISPERON (Disperon Sp. z o.o.)	[●]	[●]

LINYANG POWER ATLANTIC 5MWH TECHNICAL SPECIFICATIONS

SYSTEM PARAMETERS:

Parameter	Specification
-----	-----
Battery Chemistry	Lithium Iron Phosphate (LFP)
Configuration	12P416S
Rated Energy	5,015 kWh
Voltage Range	1,164.8V – 1,497.6V
Duration	≥2 hours
Thermal Management	Liquid Cooling (45kW)
IP Rating	IP54 (Container)
Dimensions	6,058 x 2,438 x 2,896 mm
Weight	~43 tonnes

OPERATING LIMITS (For Monitoring Alerts):

Parameter	Minimum	Maximum	Alert Threshold
-----	-----	-----	-----
Charging Temperature	0°C	+55°C	±5°C from limits
Discharging Temperature	-20°C	+55°C	±5°C from limits

Humidity	-	95% RH	>90% RH
Cell Voltage	2.5V	3.65V	$\pm 0.1V$ from limits
System Voltage	1,164.8V	1,497.6V	$\pm 50V$ from limits

CELL SPECIFICATIONS:

Parameter	Specification
Cell Capacity	314 Ah
Nominal Voltage	3.2V
Standard C-Rate	0.5C
Maximum C-Rate	1C
Cycle Life (to 70% EOL)	8,000 cycles (25°C, 90% DOD, 0.5C)
Energy Density	175 Wh/kg

BMS ACCURACY:

Parameter	Accuracy
Cell Voltage	± 5 mV
Cell Temperature	$\pm 1^\circ\text{C}$
Current	$\pm 0.5\%$ FSR
SOC	$\leq 5\%$
Energy	$\leq \pm 2\%$

KEY DATES

Milestone	Date
Equipment Delivered	[●]
Commissioning Date (PAC)	[●]
Warranty Start	[●]
Base Warranty Expiry (5 years)	[●]
LTSA Start	[●]
LTSA Initial Term End	[●]

EXPECTED DEGRADATION (SOH Reference)

Based on cycle life of 8,000 cycles to 70% EOL at reference conditions:

Reference Temperature: 25°C

Reference DOD: 90%

Reference C-Rate: 0.5C charge / 0.5C discharge

Actual degradation will vary based on:

Operating temperature (higher = faster degradation)

Depth of discharge patterns

Charge/discharge rates

Calendar aging

SCHEDULE 2 – SERVICE FEES AND PRICING

SYSTEM CAPACITY: 30 MWh (Galascope 1: 20 MWh + Galascope 2: 10 MWh)

AGREED ANNUAL SERVICE FEE: EUR 52,200 / Year (30 MWh x EUR 1,740 / MWh all-in), excluding VAT;
EUR 62,118 / Year including 19% VAT. Fixed for the 15-year Initial Term (no CPI escalation). Site,
equipment serial numbers and dates in Schedule 1 are completed at the order trigger (Connection Terms).

SELECTED SERVICE TIER: ☐ Tier A ☐ Tier B ☒ Tier C (default)

AGREED ALL-IN RATE: EUR 1,740 / MWh / Year, which is inclusive of the DISPERON EMS/SCADA software
subscription (i.e. the EMS subscription is NOT charged separately on top of this rate). This all-in Tier C rate
is the rate agreed for this Project.

BASE SERVICE PRICING (Per MWh per Year) — list/reference build-up; the agreed Tier C charge is the all-in
EUR 1,740/MWh/Year in the Annual Fee Summary below

Service Component	EUR/MWh/Year	Annual Total
-----	-----	-----
TIER A – Basic Monitoring & Maintenance		
Preventive Maintenance – BESS (list ref.)	see all-in	
(Includes remote monitoring + bi-annual servicing)		
TIER B – Add Comprehensive O&M		
Preventive & Corrective Maintenance – PCS + MVS (list ref.)	see all-in	
(Includes remote monitoring + bi-annual servicing)		
TIER C – Add Availability Guarantee		
97% Availability Guarantee (Years 1-15) (list ref.)	see all-in	
(Includes local service team + spare parts warehouse)		
TIER D – Add Performance Warranty		
SOH/Performance Warranty Price on Application	not selected	
(Subject to OEM warranty reserve confirmation)		

OPTIONAL WARRANTY EXTENSIONS (Per MWh per Year)

Warranty Extension	Years	EUR/MWh/Year	Selected
-----	-----	-----	-----
BESS Performance & Product Warranty	6-10	€913.92/MWh/Yr (€27,417.60/Yr for 30 MWh)	☐
BESS Performance & Product Warranty	11-15	€1,157.62/MWh/Yr (€34,728.60/Yr for 30 MWh)	☐
PCS + MVS Product Warranty	6-10	Not offered — Client has elected BESS-only extension	n/a
PCS + MVS Product Warranty	11-15	Not offered — Client has elected BESS-only extension	n/a

Note: Extended warranty is available for a maximum of fifteen (15) years from COD (1 cycle per day condition). Years 16-20 warranty extension is not available from the OEM. Pricing above is the official Linyang Cyprus quotation for the Project (30 MWh combined System Capacity: Galascope 1, 20 MWh + Galascope 2, 10 MWh). Scope is BESS (cells, modules, racks, BMS) only — the PCS/MVS extended-warranty option is not offered under this LTSA at the Client's instruction. This extension is optional and is not selected by default; the Client may elect either period in writing at any time before expiry of the then-current warranty period, per EPC Section 10.6-EXT. Alternative: upfront spares package at €1,000–1,250/MWh.

EMS/SCADA ANNUAL SUBSCRIPTION (Per MWh per Year)

Component	EUR/MWh/Year	Annual Total
-----	-----	-----
EMS/SCADA Software Subscription	€400	€12,000
(20% of installed EMS/SCADA cost per year)		

Calculation basis: Annual subscription = 20% of total installed EMS/SCADA cost (EMS hardware + SCADA Local + SCADA Global), divided by system capacity in MWh. For this Project the EMS/SCADA subscription rate is EUR 400/MWh/Year (EUR 12,000 per year for the 30 MWh combined across Galascope 1 and Galascope 2), as set out in the EMS Subscription Addendum. For the avoidance of doubt, this EUR 400/MWh/Year EMS/SCADA component is included within — and is not additional to — the all-in LTSA Service Fee of EUR 1,740/MWh/Year agreed for this Project; the EMS subscription is not invoiced separately on top of the LTSA Service Fee while this Agreement is in force. The standalone EUR 400/MWh/Year rate applies only if the Client exits or terminates the LTSA and the EMS subscription continues on a standalone basis.

Subscription includes:

- Software updates and patches
- Cloud hosting and data storage
- External data feeds (market prices, grid signals, weather)
- Cybersecurity maintenance and NIS2 compliance updates
- System integrations and API access

10 read-only SCADA dashboard accounts per client group

1 hour/month technical support per park (additional hours at €80/hr)

Post-Subscription: If the subscription lapses, the system degrades to local-only EMS operation — no cloud access, SCADA Global, or external data feeds.

EMS/SCADA Subscription for this System:

Item	Value
-----	-----
System Capacity	30 MWh
Installed EMS/SCADA Cost	€60,000
Annual Subscription (20%)	€12,000
EUR/MWh/Year	€400

ANNUAL FEE SUMMARY

Component	Annual Fee (EUR)
-----	-----
Base Service Fee (Tier C, all-in, incl. EMS)	€52,200
Warranty Extension (if selected)	— (none selected)
EMS/SCADA Annual Subscription	€12,000 (included in Base above)
TOTAL ANNUAL FEE	€52,200
VAT (19%)	€9,918
TOTAL INCLUDING VAT	€62,118

FEE INCLUSIONS BY TIER

TIER A includes:

- 24/7 remote monitoring
- Quarterly on-site maintenance visits (4 per year)
- Quarterly remote health checks
- Monthly and quarterly reporting
- Annual review report
- Standard consumables for preventive maintenance
- Technical support during Business Hours

TIER B adds:

- Corrective maintenance and fault rectification
- PCS and MVS maintenance and servicing

Emergency response services

TIER C adds:

97% annual Availability Guarantee

Local service team presence in Cyprus

Local spare parts warehouse

Availability Liquidated Damages protection

Priority response times

TIER D adds:

SOH Guarantee against Degradation Curve

Performance Warranty with tiered remedies

Cell augmentation provisions

Module replacement coverage

FEE EXCLUSIONS (ALL TIERS)

Major component replacement beyond warranty scope

EMS/SCADA annual subscription (charged separately — see EMS/SCADA section above)

EMS software customisation beyond standard configuration

Grid-related issues beyond point of interconnection

Damage caused by Client, third parties, or Force Majeure

Civil works or site infrastructure

Third-party equipment not supplied under EPC Agreement

PAYMENT SCHEDULE

Invoice issued annually in advance on anniversary of Commissioning Date

Payment due within 30 days of invoice

All amounts exclusive of VAT unless otherwise stated

Warranty extension fees payable in advance for the extension period

SCHEDULE 3 – MAINTENANCE CHECKLIST

(Per Linyang OEM Maintenance Manual)

PRE-MAINTENANCE SAFETY CHECK (OEM REQUIRED)

☐ Weather conditions acceptable (no rain, snow, fog, high humidity, excessive wind)

☐ Container door opening is safe

- ☐ All MSDs disconnected before rack maintenance
 - ☐ Pack plug locking structures unlocked before any unplugging
-

BI-ANNUAL ON-SITE MAINTENANCE CHECKLIST

CONTAINER INSPECTION (OEM Monthly Items)

- ☐ No damage, paint flaking, or oxidization
- ☐ No deformation of container or devices
- ☐ No flammable objects on top of container
- ☐ Foundation welding firm, no corrosion
- ☐ Door lock unlocks flexibly
- ☐ Sealing strip fixed properly
- ☐ Door seals do not curl when closing
- ☐ No foreign objects, dust, dirt, or condensed water inside
- ☐ Humidity within normal range

AIR FLOW (OEM Monthly Items)

- ☐ Air inlet not blocked
- ☐ Air outlet not blocked
- ☐ Internal ventilation paths clear

ELECTRICAL SYSTEMS (OEM 6-Month + Annual Items)

- ☐ All cables checked for breakage
- ☐ Cable layout normal, no short circuit risk
- ☐ All cable entries well sealed
- ☐ Power cables not loose
- ☐ Torque verification completed per OEM specification
- ☐ Power/control cables not damaged
- ☐ Insulation tapes on terminals intact
- ☐ Cable shielding in good contact with insulation sleeve
- ☐ Copper bus bar firmly fixed
- ☐ SPD properly fastened
- ☐ Fuses properly fastened
- ☐ Busbar connections secure
- ☐ Switchgear operation verified
- ☐ Protection relay settings verified
- ☐ Thermal imaging completed

GROUNDING (OEM Annual Item)

- ☐ Ground connection correct
- ☐ Grounding resistance measured: _____ Ω (MUST BE $\leq 4\Omega$)
- ☐ Equipotential connection inside system correct

BATTERY SYSTEMS

- ☐ All MSDs properly disconnected before work
- ☐ Module visual inspection
- ☐ Cell voltage readings recorded
- ☐ Cell temperature readings recorded
- ☐ Module balancing status verified
- ☐ BMS communication check passed
- ☐ SOH verification completed

THERMAL MANAGEMENT

- ☐ HVAC system operating normally
- ☐ Temperature not excessively high
- ☐ Fan operation verified
- ☐ No abnormal noise during operation
- ☐ Filters inspected/cleaned/replaced
- ☐ Temperature sensor calibration verified
- ☐ Thermal imaging completed

SAFETY SYSTEMS

- ☐ Fire suppression system armed, pressure OK
- ☐ Smoke/heat detector test passed
- ☐ Emergency stop function tested
- ☐ Door interlock operation verified
- ☐ Ventilation system operational
- ☐ Safety signage and labels intact
- ☐ Serial numbers visible and unaltered

SOFTWARE AND DATA (OEM Monthly Items)

- ☐ BMS data downloaded and saved
- ☐ Run data saved to file
- ☐ Parameters saved to file
- ☐ Logs saved to file
- ☐ Parameter settings reviewed
- ☐ Firmware version verified
- ☐ Software updates applied (if available)
- ☐ Communication link verified

- ☐ Remote monitoring confirmed
- ☐ Alarm log reviewed

POST-MAINTENANCE

- ☐ All MSDs reconnected
- ☐ System returned to operational state
- ☐ Door seals checked before closing
- ☐ Door locked properly

DOCUMENTATION

- ☐ Maintenance log updated
- ☐ Key components photographed
- ☐ All measurements recorded
- ☐ Recommendations noted
- ☐ Maintenance report completed

SCHEDULE 4 – AVAILABILITY CALCULATION AND GUARANTEES

(Applicable to Tier C only)

AVAILABILITY FORMULA

Availability (%) = [(Total Hours - Unavailable Hours) / Total Hours] x 100

Where:

Total Hours = 8,760 hours per year (8,784 in leap year)

Unavailable Hours = hours when BESS cannot operate at rated capacity due to:

- Equipment fault or failure
- Service Provider-caused downtime
- Waiting for parts or repairs

GUARANTEED AVAILABILITY LEVEL

Service Tier	Guaranteed Availability
Tier C	97% annual
Tier C	97% annual (highest tier)

EXCLUDED HOURS (Do not count as Unavailable)

The following shall NOT count as Unavailable Hours:

1. Scheduled Downtime (max 240 hours / 10 days per year for maintenance)
 2. Grid unavailability or curtailment by grid operator
 3. Force Majeure events
 4. Client-caused issues or unauthorised modifications
 5. EMS or third-party system failures
 6. Periods when BESS is not dispatched
 7. Downtime during warranty claim investigations
-

AVAILABILITY LIQUIDATED DAMAGES

Achieved Availability	Service Fee Reduction
-----	-----
95% to < 97%	5% of annual Service Fee
93% to < 95%	10% of annual Service Fee
90% to < 93%	15% of annual Service Fee
Below 90%	20% of annual Service Fee

Maximum annual Availability Liquidated Damages: 20% of annual Service Fee

Availability LDs shall be calculated as follows: for each percentage point below 97% achieved, the Service Provider shall pay EUR 30 per MWh per day of affected unavailable capacity (minimum EUR 500 per day per Park). Where this daily rate would produce a lower aggregate than the fee-reduction percentages in the table above, the fee-reduction table governs; where the daily rate produces a higher aggregate, the daily rate governs. In all cases the cap in Section 9.5 applies.

AVAILABILITY MEASUREMENT AND REPORTING

1. Availability shall be measured continuously via the Monitoring Platform
2. Monthly availability reports shall be provided to the Client
3. Annual availability calculation shall be completed within 15 Business Days of year end
4. Client may dispute calculations within 30 days of receipt
5. Liquidated Damages (if applicable) shall be credited against next invoice

SCHEDULE 5 - DEGRADATION CURVE AND SOH GUARANTEE

SOH REFERENCE DATA (OEM Degradation Curves — for information and EPC guarantee reference)

Reference: Linyang Power Atlantic 5MWh BESS Degradation Curve Document

INITIAL SOH AT COMMISSIONING

SOH at Commercial Operation Date (COD): 98.5%

OEM DEGRADATION CURVES (Per Linyang Documentation)

Operating Condition: 0.25P, 2 Cycles per Day

| Year | SOH | Cumulative Cycles |

|-----|-----|-----|

| 0 | 98.50% | 0 |

| 1 | 93.91% | 730 |

| 2 | 90.66% | 1,460 |

| 3 | 87.97% | 2,190 |

| 4 | 85.76% | 2,920 |

| 5 | 83.72% | 3,650 |

| 6 | 81.78% | 4,380 |

| 7 | 80.08% | 5,110 |

| 8 | 78.09% | 5,840 |

| 9 | 76.12% | 6,570 |

| 10 | 74.13% | 7,300 |

| 11 | 72.11% | 8,030 |

| 12 | 70.10% | 8,760 |

Operating Condition: 0.5P, 2 Cycles per Day

| Year | SOH | Cumulative Cycles |

|-----|-----|-----|

| 0 | 98.50% | 0 |

| 1 | 93.78% | 730 |

| 2 | 90.17% | 1,460 |

| 3 | 87.53% | 2,190 |

| 4 | 84.93% | 2,920 |

| 5 | 82.95% | 3,650 |

| 6 | 80.50% | 4,380 |

| 7 | 78.47% | 5,110 |

| 8 | 75.94% | 5,840 |

| 9 | 73.83% | 6,570 |

| 10 | 71.34% | 7,300 |

GUARANTEED STATE OF HEALTH (SOH)

Based on OEM degradation data, the following minimum SOH levels are guaranteed:

For 1 Cycle per Day Operation:

End of Year	Guaranteed Minimum SOH
-------------	------------------------

-----	-----
-------	-------

1	94.62%
---	--------

2	91.77%
---	--------

3	89.91%
---	--------

4	88.00%
---	--------

5	86.78%
---	--------

6	84.97%
---	--------

7	83.83%
---	--------

8	82.25%
---	--------

9	81.06%
---	--------

10	79.58%
----	--------

15	73.61%
----	--------

Note: OEM SOH guarantee is available for a maximum of fifteen (15) years. Year 20 SOH guarantee is not available from the OEM.

For 2 Cycles per Day Operation:

End of Year	Guaranteed Minimum SOH
-------------	------------------------

-----	-----
-------	-------

1	93%
---	-----

2	89%
---	-----

3	86%
---	-----

4	84%
---	-----

5	82%
---	-----

6	80%
---	-----

7	78%
---	-----

8	75%
---	-----

9	73%
---	-----

10	71%
----	-----

OPERATING CONDITION ASSUMPTIONS

Guaranteed SOH is based on:

Operating temperature within OEM range (0-55°C charging, -20-55°C discharging)

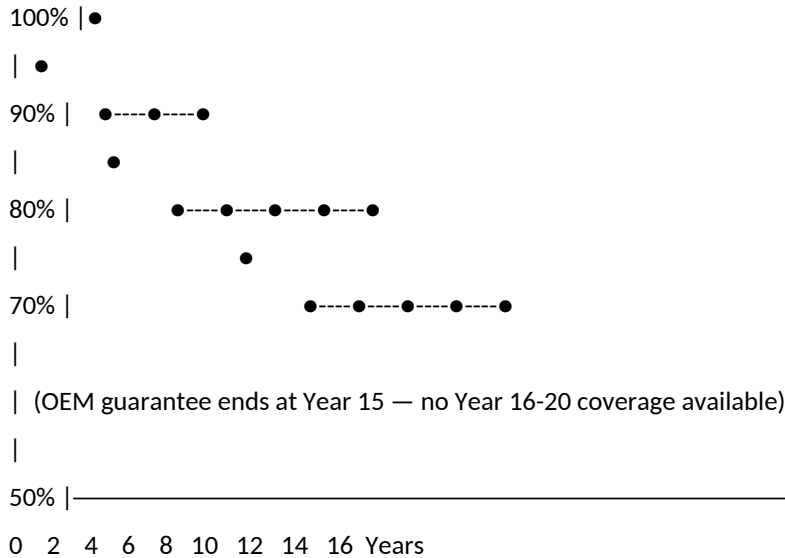
Charge/discharge rate as specified (0.25P or 0.5P)

Cycles per day as agreed

Operation in accordance with OEM User Manual

No warranty-voiding events (see below)

DEGRADATION CURVE (Visual Reference)



SOH MEASUREMENT PROTOCOL

1. SOH shall be measured annually using OEM-approved capacity test protocol
2. Test shall be conducted under controlled conditions:
 - Ambient temperature: 20-25°C
 - Full charge/discharge cycle at C/3 rate
 - Rest period of 2 hours between charge and discharge
3. Results shall be documented in SOH Certificate
4. Client may request additional tests at Client's cost

REMEDIES FOR SOH UNDERPERFORMANCE

CATEGORY A: ISOLATED MODULE FAILURES

(Affecting < 5% of total system capacity)

Remedy: Module replacement at Service Provider's cost

Timeline: Within 60 days of identification

Standard: Replacement modules shall be new or equivalent to new

CATEGORY B: SYSTEMIC UNDERPERFORMANCE

(Affecting $\geq 3\%$ of total system capacity)

Remedy Options (at Service Provider's election):

1. Cell Augmentation: Add cells to restore capacity to Guaranteed SOH

Timeline: Within 120 days

All costs borne by Service Provider

2. Liquidated Damages: Payment calculated as:

$LD = (\text{Guaranteed SOH} - \text{Actual SOH}) \times \text{System Capacity} \times \text{Market Rate per kWh}$

Market Rate = prevailing cost of equivalent battery modules

Maximum SOH Liquidated Damages: 50% of total Service Fees paid over Term

EXCLUSIONS FROM SOH GUARANTEE

The SOH Guarantee does not cover degradation caused by:

1. Operation outside OEM-specified parameters
 2. Excessive cycling (> 1.5 equivalent full cycles per day average)
 3. Extreme temperature exposure beyond design limits
 4. Physical damage, vandalism, or Force Majeure
 5. Unauthorised modifications or third-party interventions
 6. Improper storage before installation
 7. Grid voltage or frequency excursions beyond design limits
-

 **WARRANTY-VOIDING BATTERY CONDITIONS** (Per OEM User Manual)

CRITICAL: The following conditions VOID the warranty and SOH guarantee:

Condition	Threshold	Duration
-----------	-----------	----------

-----	-----	-----
-------	-------	-------

Low Cell Voltage	$< 2.8V$	120 consecutive hours
------------------	----------	-----------------------

Zero SOC	0%	120 consecutive hours
----------	----	-----------------------

Under-Voltage	$\leq 2.5V$	Any occurrence
---------------	-------------	----------------

Prevention Requirements:

Client must not leave BESS in low voltage or low SOC condition for extended periods

Monitoring must alert at cell voltage $< 2.9V$

SOC must be maintained above 5% during non-operating periods

If system will be offline for extended period, charge to 30-50% SOC

OEM WARRANTY RESERVE

The SOH Guarantee is backed by the OEM (Linyang) warranty reserve.

Current OEM warranty reserve: Approximately 1.9% of system value per year

Service Provider shall maintain adequate warranty provisions with OEM.

SIGNATURES

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorised representatives as of the Effective Date.

For Lighthief Cyprus Ltd

Name: _____

Title: _____

Signature: _____

Date: _____

For [End Customer]

Name: _____

Title: _____

Signature: _____

Date: _____

COMPANION DOCUMENTS

This LTSA is a condition precedent to the EPC advance payment (EPC §1A.5A) and is intended to be executed alongside and read in conjunction with:

- (a) EPC Agreement (LCY-EPC-GAL-B1-2026 (v6.5, August 2026)) between the same Parties;
- (b) OEM Direct Warranty Undertaking (LCY-OEM-DWU-001 v1.0) from Linyang Energy.

The Parties' firm intention is to execute this LTSA on the same date as the EPC Agreement (the Order Date), consistent with the recital above. If for genuine practical reasons that is not achieved, this LTSA must in any event be executed no later than the Documents Long-Stop Date under EPC Section 1A.8(b), and in all cases before the EPC advance payment falls due under EPC Section 1A.5A. For the complete companion-document suite (including the Advance Payment Guarantees, the OEM Performance Guarantee, the EMS Subscription Addendum and the Technical Agreements), see Section 2.4 below.

ANNEX LT-2 — HISTORICAL INDEX (INTEGRATED INLINE, 14 AUG 2026)

This Annex previously contained ~30 technical and service amendment clauses agreed on the client (Timotheos / technical-review) redline of July 2026. Those clauses appeared only here, after the signature block, and were not in fact present in the numbered body of the Agreement notwithstanding the front-matter statement to the contrary. As of the 14 Aug 2026 restructuring, all such clauses (and two further unnumbered items found on review — the Restoration/Resolution Time definitions and the Client-financing assignment clause) have been fully integrated inline into their correct numbered sections in the body of this Agreement (see each clause at its inline location, listed below for reference). This Annex is retained solely as a historical index and contains no substantive obligations.

2.4 — Integrated Project-Document suite — *see inline location in the body above.*

2.4A — Order of precedence — *see inline location in the body above.*

Definitions (§3) — Restoration Time / Resolution Time / Repeated Service Failure — *see inline location in the body above.*

4.1A — Selected Tier — *see inline location in the body above.*

4.3A — Corrective Maintenance — scope — *see inline location in the body above.*

4.4A — Exclusions — causation and burden — *see inline location in the body above.*

5.2A — Minimum monitored parameters — *see inline location in the body above.*

5.6A — Reporting content — *see inline location in the body above.*

5.8A — Client data ownership — *see inline location in the body above.*

5.9A — End-to-end interface responsibility — *see inline location in the body above.*

6.1A — Warranty preservation — *see inline location in the body above.*

6.3A — Warranty-Preservation File — *see inline location in the body above.*

7.4A — No additional charge for warranty-preserving services — *see inline location in the body above.*

8.1A — Redundant monitoring — *see inline location in the body above.*

8.2A — Maximum Restoration and Resolution Times — *see inline location in the body above.*

8.6A — Major Incident Procedure — *see inline location in the body above.*

8.7A — Safety-critical 24/7 response — *see inline location in the body above.*

9.8 — Chronic underperformance — *see inline location in the body above.*

10.3A — Witnessed SOH/RTE testing — *see inline location in the body above.*

10.4A — SOH remedy — scope — *see inline location in the body above.*

10.6A — OEM reserve evidence — *see inline location in the body above.*

11.3A — Local spare-parts warehouse — *see inline location in the body above.*

11.6 — Obsolescence and equivalent replacement — *see inline location in the body above.*

12.5A / 12.7A — Client obligations and suspension — causation — *see inline location in the body above.*

13.6 — Transition assistance — *see inline location in the body above.*

14.3A / 14.4A — Additional liability carve-outs — *see inline location in the body above.*

14.5A — OEM claim management — *see inline location in the body above.*

16.4 — Force Majeure — limitations — *see inline location in the body above.*

18A — Cyber security (framework) — *see inline location in the body above.*

19.5A — SCADA/DSO communication failures — *see inline location in the body above.*

19.8A — Editable documentation — *see inline location in the body above.*

20.5 — Expert determination — *see inline location in the body above.*

21.3B — Lender step-in — *see inline location in the body above.*

21.3C — Assignment — Client financing — *see inline location in the body above.*

Note: Section 21.3A (Assignment for Security) was also found misplaced after the signature block on the same review and has likewise been relocated to its correct inline position (Section 21, after 21.3, before 21.4).